

that exposed metal bolts protruded approximately 3 millimeters from the sidewalk. Defendant argues this defect is trivial, too small, and too commonplace to constitute a substantial injury risk under California premises liability law. Therefore, Plaintiff cannot establish the existence of a dangerous condition as a matter of law, which means her pleading fails to state facts sufficient to constitute a cause of action such that judgment on the pleadings should be granted for Defendant.

There are several cases cited, the most salient being *Whiting v. National City*. In *Whiting*, the plaintiff sued a city for injuries from a fall when she caught the toe of her shoe on the upraised edge of a cement square in a sidewalk. (*Whiting v. Nat'l City* (1937) 9 Cal.2d 163, 164.) The *Whiting* court specifically stated: "It is a matter of common knowledge that it is impossible to maintain a sidewalk in a perfect condition." (*Whiting, supra*, 9 Cal.2d at p. 165.) "A municipality cannot be expected to maintain the surface of its sidewalks free from all inequalities and from every possible obstruction to travel. Minor defects due to continued use, or action of the elements, or other cause, will not necessarily make the city liable for injuries caused thereby." (*Ibid.*) "What constitutes a minor defect is not always a mere question of fact. If the rule were otherwise the city could be held liable upon a showing of a trivial defect." (*Ibid.*)

Here, with judicial notice of the 3 mm conversion to 0.11811 inches, there can be no reasonable dispute that the resulting fraction is 1/8 inch, which is even lower than the 1/2-inch minor defect in *Barrett v. City of Claremont* (1953) 41 Cal.2d 70, 74. The *Barrett* court concluded: "From the minor nature of the defect here concerned it must be concluded, as a matter of law, that no injury would be sustained by one exercising reasonable care in the use of the sidewalk." (*Barrett, supra*, 41 Cal.2d at p. 75.) Thus, the Court would likewise consider the currently-pleaded irregularity as being insufficient to support the claims.

17. *South Colton Families First, et al, v. City of Colton, et al*, Case No. CIVSB2607256
Demurrer of Real Party in Interest IDI Agua Mansa, LLC
9/22/26, 9:00 a.m., Dept. S-17

Continued from September 1, 2026, to allow satisfaction of the meet-and-confer requirement

Tentative Rulings

As to Requests for Judicial Notice: The Court would **GRANT** both Real Party's requests, as well as Petitioners' requests.

As to the Demurrer: The Court would **OVERRULE**.

Case Summary

This is a California Environmental Quality Act (CEQA) matter. The petition concerns Colton's approval of the construction of two warehouses, known as the Agua Mansa Logistics Center (the "Project"). The first warehouse is a typical distribution center, approximately 50-feet high and 450,000 square feet at its base. The second is a 130-foot-tall, "high cube" robotic freezer. (Pet, ¶1.)

Generally, Petitioners allege Colton violates CEQA by failing to adequately analyze all of the Project's potentially significant environmental impacts or provide evidence to support conclusions reached in the

Initial Study. For example, they argue the Initial Study fails to analyze adequately and properly the Project's consistency with the 2013 General Plan Environmental Impact Report (GPEIR) and fails to analyze adequately the Project's environmental impacts caused by increased emissions of ozone-forming chemicals, increased emissions of carcinogenic diesel exhaust, increased emissions of greenhouse gases, increased exposure of sensitive receptors and already overburdened residents to pollutant emissions. Additionally, among other things, the Study also allegedly fails to adequately analyze and mitigate harm to irreplaceable historic resources, including to the Salazar Adobe and the Old Spanish Trail, decreased traffic safety, and the Project's cumulative impacts with the hundreds of other warehouse and distribution centers already built or planned for the area.

On March 9, 2026, Petitioners filed a writ of mandate against Respondent City of Colton and Real Parties in Interest Lineage Logistics, LLC; IDI Agua Mansa, LLC; and IDI Logistics. The Petition alleges (1) violation of CEQA and (2) violation of the Planning and Zoning Law.

Analysis

Timeliness – As a preliminary matter, Petitioners argue that the demurrer is untimely. The Petition was served on March 24, 2026. An answer has not been filed, and the demurrer was not filed until June 12, 2026. Even so, in reply, Real Party argues the time to answer differs in a CEQA action.

In a writ of mandate action, when the administrative record has not been filed with the petition, the respondents and real parties in interest must “answer or otherwise respond within 30 days following receipt of a copy of the record.” (Code Civ. Proc., § 1089.5.) “Because CEQA actions virtually always involve a record of the proceedings, they are invariably governed by this . . . provision of CCP § 1089.5, except in the rare case in which the record is filed with the petition.” (Kostka & Zischke, *Practice Under the California Environmental Quality Act* (2d ed. 2026) § 23.76.2.) Though it is worth noting this is a mixed action, the aforementioned treatise suggests that section 1089.5 would still apply. Regardless, the Court has discretion to consider an untimely demurrer on the merits in circumstances such as this where there appears to be no prejudice to the other party. Here, the demurrer appears timely, but even if it were not, the Court would exercise its discretion and hear it on the merits.

Exclusive Jurisdiction: As to Real Party's first argument—that the *Colton I* (CIVSB2317228) court has exclusive jurisdiction over the claims herein, Real Party details the litigation challenging Colton's 2023 Approvals for the Project and the subsequent February 2026 Approvals.

Petitioners filed a lawsuit against the City of Colton on July 21, 2023, challenging Colton's approvals for the Project, which action was docketed as *Colton I*. (Petition ¶ 29; Petition for Writ of Mandate, *Colton I*; RJN, Exh. 9.) On June 3, 2024, the *Colton I* court issued a ruling that granted the petition for writ of mandate in *Colton I* on two narrow grounds. (Ruling on Petition for Writ of Mandate, *Colton I*; RJN, Exh. 10.)

To comply with CEQA and the Writ when taking these actions to approve the Project in February 2026, the City Council relied on an updated analysis of the Project's operational air quality impacts (the “Updated Section 15183 Analysis”). The version of the Project approved by the City in February 2026 was slightly different from the version previously approved in 2023, in that the Project had a minor adjustment to the right-of-way dedication and did not require a variance from parking requirements. (Staff Report from City Manager Bill Smith to Colton City Council, Vacation of Approvals & Updated Agua

Mansa Logistics Center Project; RJN, Exh. 20, p. 4.) Petitioners challenged Colton's February 2026 approvals for the Project. Colton, however, filed a return to the Writ on February 17, 2026. (Return to Writ of Mandate, *Colton I*; RJN, Exh. 21.)

On March 9, 2026, Petitioners filed the Petition to initiate this action. This Petition alleges that the City's February 2026 reapproval of the Project violates CEQA and the Planning and Zoning Law by improperly relying on an updated 15183 analysis despite alleged significant impacts relating to air quality, greenhouse gases, historic resources, traffic, and roadway width requirements for Agua Mansa Road. Petitioners further contend that the Project is inconsistent with Colton's General Plan. Petitioners admit that the Petition "contain[s] substantially similar allegations" as their proposed supplemental petition for writ of mandate in *Colton I*. (Reply in Support of Motion to File Supplemental Petition for Writ of Mandate, *Colton I*, May 8, 2026; RJN Exh. 27, p. 4.)

On May 15, 2026, following a hearing, the *Colton I* court granted Colton's and IDI's motion to discharge the Writ and denied Petitioners' motion to file a supplemental petition for writ of mandate. (Notice of Rulings Re Respondent's and Real Parties In Interest's Joint Motion to Discharge Peremptory Writ and Petitioners' Motion to File Supplemental Petition for Writ of Mandate, *Colton I*, May 18, 2026; RJN, Exh. 28.)

In light of this procedural history, Real Party argues to the extent the first cause of action challenges Colton's analysis of mitigation for the Project's operational air quality impacts pursuant to CEQA, it is essentially a challenge to Colton's compliance with the Writ. On this ground only, Real Party puts forth that filing a new petition is not the proper procedure for challenging such compliance.

Here, while the case law cited by Real Party is accurate, it only applies to the extent the challenges identified in the Petition are challenging a return to Writ. The only underlying allegation Real Party has noted pertains to operational air quality impacts. Indeed, the demurrer itself states verbatim: "To the extent the First Cause of Action in the Petition challenges the City's analysis of mitigation for the Project's operational air quality impacts pursuant to CEQA, it is essentially a challenge to the City's compliance with the Writ." (Dem., 12: 5-7.)

This approach, however, is problematic: Had the Petition only made a single allegation regarding operational air quality impacts with respect to CEQA, then Real Party would have a valid argument. However, the Petition is more varied than that. Highlighting just one paragraph in the Petition, for example, demonstrates that there are more allegations at play. Petitioners also allege, more specifically, that the Project is inconsistent with the General Plan and an EIR is required to analyze impacts on air quality (exposure of sensitive receptors to toxic pollutants), climate change (through increased GHG), environmental justice, land use, historic resources, transportation and traffic safety, cumulative impacts, and safety risks associated with chemical releases from the concentrated refrigerants in the warehouse tower.

While this issue may very well have been raised previously or could have been, Real Party only argues with respect to the operational air quality impacts. It is not this Court's job to make Real Party's argument for it. (See *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099 [court is not bound to develop arguments].)

Res Judicata – Here, Petitioners raise several issues:

First, they argue there is no final judgment on the merits of *Colton I* because they have appealed the Court's ruling on the motion to discharge and the motion to file a supplemental petition. Because there is an appeal pending, they argue res judicata cannot apply. "Unlike the federal rule and that of several states, in California the rule is that the finality required to invoke the preclusive bar of res judicata is not achieved until an appeal from the trial court judgment has been exhausted or the time to appeal has expired. For res judicata purposes, the judgment sought to be invoked in bar must be 'the 'last word' of the rendering court—a 'final' judgment.'" (*Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal.App.4th 1168, 1174, citations omitted.)

Second, Petitioners argue there are issues that were not exhausted in *Colton I* and res judicata only bars those issues that were actually litigated. With respect to GHG emissions, for example, Petitioners note it was decided on a failure to exhaust issue; however, as noted by Real Party, Petitions cite no case law that a failure to exhaust precludes res judicata.

Third, Petitioners argue there are new claims that could not have been raised in *Colton I* because there was no public review since Colton cited an exemption. Here, Petitioners rely on an allegation regarding the risks associated with chemical releases from the concentrated refrigerants in the warehouse tower. (Pet., ¶¶1, 61.) Petitioners argue these allegations are connected to their request for judicial notice showing that the Real Party involved (Lineage) has had safety incidents resulting in other court filings, and these risks were not previously known at the time *Colton I* was filed and decided. (See RJN, Exhs. A-C, D, F.)

Lastly, Petitioners also argue the road-widening could not have been addressed in *Colton I* because it is a new issue. Here, Real Party concedes there were changes made with respect to the road but maintain that, though the exact inconsistency is new, an inconsistency with the General Plan could have been raised earlier.

In reply, Real Party argues that because Petitioners did not appeal the Ruling on the Writ itself, the Judgment is already final. Here, Real Party is correct and res judicata can apply in this case. "No appeal from the judgment issuing the writ was filed and so that judgment is final." (*Los Angeles Int'l Charter High School v. Los Angeles Unified School Dist.* (2012) 209 Cal.App.4th 1348, 1353.) "When the trial court issues its judgment granting a peremptory writ, the respondent has two choices: to appeal that judgment or to comply with it." (*Id.* at pp. 1354-1355 [internal citations and footnote omitted].) "If the respondent elects to comply with the writ, it waives its right to appeal from the judgment granting the writ petition." (*Ibid.*) "That there are additional proceedings involving the return on the writ does not change the finality of the judgment issuing the writ. The order following the hearing into the adequacy of the . . . return on the writ is appealable as an order enforcing the judgment." (*Ibid.*)

However, Real Party concedes Petitioners now raise a host of new arguments and documents to challenge the City's February 2026 approval of the Project. But it claims those new arguments and documents are not based on any materially different facts or circumstances that were not in existence when Colton originally approved the Project in June 2023. Yet, Real Party also acknowledges changes were made to the Project since then (e.g. with respect to the road). These facts appear new and not in existence at the time of entry of Judgment, nor has the RJN demonstrated as much. Additionally, the demurrer only broadly claims all the allegations here are barred by res judicata, but Real Party does not isolate each allegation and show where it was or should have been previously litigated. For example,

there are eight distinct allegations in paragraph 61 of the instant Petition. Real Party does not demonstrate that each of these allegations is barred by res judicata and simply relies on its broad claim.

Real Party's argument on reply is also problematic. There, Real Party does attempt to isolate each allegation. But in order to demonstrate that each issue could have been raised previously, Real Party cites to the administrative record of *Colton I*, and it is a portion of the record that was not the subject of judicial notice herein. This is beyond the scope of this demurrer. Next, the demurrer did not list the issues raised that could have been raised and only did so for the first time on reply. This goes beyond the issues raised by Petitioners in their Opposition. With respect to new argument raised for the first time on reply, fairness militates against considering such argument because the opposing party has not had an opportunity to address the argument. (*Golden Door Properties, LLC v. City of San Diego* (2020) 50 Cal.App.5th 467, 559.)

Ultimately, the argument here fails for the same reason the argument with respect to exclusive jurisdiction fails: It fails because Real Party only demurs to part of a cause of action. By arguing broadly that each allegation is barred but not isolating each and demonstrating where it was previously litigated, and then by footnoting the fact that certain allegations are based on changes made after *Colton I* was decided [see e.g., Dem. at p. 17, FN5], Real Party fails to show how each allegation under the causes of action are barred.

Collateral Estoppel – Similarly, here, Real Party argues broadly that the Petition is subject to demurrer because all the issues raised were decided in *Colton I* and are therefore precluded by the doctrine of collateral estoppel. Petitioners, as with *supra*, argue collateral estoppel does not apply in light of there having been no final judgment. Yet, in light of this broad approach taken by Real Party, it again does not show that an entire cause of action would be disposed of on the grounds of collateral estoppel, especially where there are concessions with respect to the road-widening and the fact that this was decided after *Colton I*'s Judgment. Thus, accepting the allegations as true and in a light most favorable to Petitioners, the demur again only affects part of a cause of action.

18. *Mabudian, M.D., et al, v. Beaver Medical Group, PC, et al*, Case No. CIVSB2133187
Defendants' Motion to Seal
9/22/26, 9:00 a.m., Dept. S-17

Continued from September 1, 2026, to allow for a supplemental declaration

The motion is **MOOT** as to Exhibits 3, 4, 9, and 10, in light of the parties' agreement that these documents may be filed in support of Defendants pending motion for summary judgment or adjudication.¹ The Court would **GRANT** the motion as to Exhibits 5 through 8.

¹ On August 24, 2026, Defendants filed a Notice of Lodging Documents Conditionally Under Seal, in which it states that Plaintiff has requested that her home address be redacted from the documents and then requests the attached Exhibits 1, 2, and 11 be lodged as the exhibits instead of the ones previously submitted on May 29, 2026. Defendants agree this approach is reasonable.